



## GOLD MEDAL INJURY LAW

WASHINGTON

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LAS VEGAS, NEVADA 89146

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{{TODAY\_LONG}}

### SENT VIA FIRST CLASS MAIL, FACSIMILE AND EMAIL

{{insurance2.insurer.name}}

Attn: {{insurance2.adjuster.name}}

{{insurance2.adjuster.address1line1}} {{insurance2.adjuster.address1line2}}

{{insurance2.adjuster.address1city}}, {{insurance2.adjuster.address1state}}

{{insurance2.adjuster.address1zip}}

F: {{insurance2.adjuster.fax1}}

Re: Your Insured: {{insurance2.insured.name}}  
Our Client: {{fullname}}  
Policy No.: {{insurance2.policynumber}}  
Claim No.: {{insurance2.claimnumber}}  
Date of Loss: {{intake.incidentDate| longDate}}

Dear Mr./Ms. {{insurance2.adjuster.lastname}},

Regarding your recent request as to the workman compensation issue. Please forward me a copy of the entire policy, including the verbiage regarding the workman's compensation provision. It is my understanding that Mr./Ms. {{lastname}} was working at the time of the incident, however he/she did not, and never did open a workman's compensation claim in relation to this incident. As a result, Mr./Ms. {{lastname}} is not eligible for workman's compensation benefits as his/her claim was never open. In the state of Nevada, a person has approximately sixty (60) days from the date of the incident to file a compensation claim. It is clear from the date of the incident, that more than sixty (60) days has lapsed and therefore Mr./Ms. {{lastname}} is forever barred from opening a workman's compensation claim.

Additionally, here in the state of Nevada, the third-party administrator of a workman compensation claims has a subrogation lien for the amount they have expended in relation to the workman compensation lien. As a result, Mr./Ms. {{lastname}} would not be receiving payment for the same element of loss under the Under/Uninsured portion of his/her claim. Of note, this policy language would also violate Nevada's longstanding collateral source rule.

Based on the above, please disclose a copy of the policy at your earliest convenience, and I look forward to working with you towards an amicable resolution of this matter.

Very Truly Yours,

Timothy Ray, ESQ.  
{{FIRM\_NAME}}

TR/